Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

EX PARTE APPLICATION FOR DOCUMENT PRESERVATION ORDER

Supporting Declaration of Franciscus Dylan Rosario; [Proposed] Order

PART I: EX PARTE APPLICATION

RELIEF REQUESTED

Plaintiff Franciscus Dylan Rosario applies ex parte for an order directing Defendant CSAA Insurance Exchange to preserve, maintain, and refrain from destroying, altering, concealing, or disposing of the documents and records identified below. This application is made on the grounds that Defendant is now on notice of fraud allegations arising from its February 25, 2021 denial letter, that the records sought are critical to proving the state of CSAA's investigation at the time of denial, and that without a preservation order, there is a substantial risk of spoliation.

NOTICE

Plaintiff has provided notice of this ex parte application to Defendant CSAA by email and telephone in compliance with Cal. Rules of Court, rule 3.1203.

GROUNDS FOR EX PARTE RELIEF

A. Irreparable Harm Without Immediate Relief

Ex parte relief is appropriate where the applicant demonstrates "irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) Here, the records targeted by this application are uniquely within Defendant's custody and control. Once destroyed, altered, or purged, they cannot be reconstructed. The harm is irreparable because:

1. **The complaint alleges insurance fraud.** Defendant is now on notice that its claim file, adjuster notes, diary entries, audit trails, and metadata are the evidence needed to prove whether its representation that the investigation was "concluded" on February 25, 2021 was false.
2. **Defendant has motive to destroy.** The internal records will show what investigation steps were taken (or not taken) before the denial letter, what adjuster notes and diary entries existed, and what metadata and audit trails document the denial-letter process.
3. **CSAA may purge claim file records.** Insurers routinely purge claim files after closure. The underlying claim was closed by the April 25, 2025 judgment in CGC-21-594102. Without a preservation order, CSAA's ordinary-course records retention may result in destruction of adjuster notes, diary entries, audit trails, metadata, and investigation documentation.
4. **Metadata and audit trails are ephemeral.** Electronic claim-handling systems utilize automated retention policies that overwrite access logs, metadata, and audit trails on a rolling basis (often 30–90 days). Once overwritten, this evidence cannot be reconstructed.
5. **Irreconcilable contradiction evidence.** RFAs 50 and 51 establish that CSAA cannot simultaneously maintain that its investigation was "concluded" and that it (a) had not obtained the 911 recording, or (b) continued to evaluate or adjust reserves. CSAA's claim file, reserve records, and metadata are needed to prove or disprove these contradictions, and they are at risk of routine purging.

FACTUAL BASIS

The Complaint alleges that CSAA falsely represented in its February 25, 2021 denial letter that its investigation was "concluded" when in fact material investigation steps had not been taken. The evidence necessary to prove the falsity of this representation resides in CSAA's claim file, adjuster notes, diary entries, audit trails, metadata, and investigation documentation. These records establish exactly when files were accessed, created, or modified, and what investigation activity occurred before the denial.

RECORDS TO BE PRESERVED

A. CSAA Insurance Exchange

1. The complete claim file for the Abdelhalim claim arising from the February 4, 2021 incident, including all adjuster notes, diary entries, and internal correspondence from February 4, 2021 through the present.
2. All audit trails, metadata, and system logs reflecting access to, creation of, or modification of claim file records, including records showing when the denial letter was drafted, reviewed, approved, and issued.
3. All records reflecting the investigation (or absence of investigation) conducted before, during, and after the February 25, 2021 denial letter, including but not limited to: requests for 911 audio, body-worn camera footage, CAD records, or supplemental police reports; records of any such materials obtained or reviewed; and records of any investigation steps taken or deferred.
4. All records documenting the denial-letter process, including drafts, approval chains, and communications regarding the decision to deny the claim.
5. All litigation management records, instructions, and correspondence with defense counsel regarding the defense of CGC-21-594102.
6. **Claims manual and procedures:** All claims manual, procedures, and training materials defining what constitutes a "complete" or "concluded" investigation before a liability denial; denial-letter templates and form language; and records of supervisor review or approval of

the liability denial.

7. **Pre-denial investigation:** All records of any contact with SFPD or DEM before February 25, 2021; records of any request for 911 audio, body-worn camera footage, or CAD records before February 25, 2021; records of any medical records, expert reports, or third-party investigation obtained before the denial; and records of any recorded or sworn statement from the insured before the denial.
8. **Post-denial conduct:** All records of when CSAA or its counsel first obtained the 911 recording, body-worn camera footage, or CAD records; records of any post-denial evaluation, reassessment, or monitoring of the claim; and records of any reserve changes after February 25, 2021.
9. **MIL review and ratification:** All records of CSAA's awareness, before January 17, 2025, that the 911/BWC/CAD had been served on defense counsel; records of CSAA's review, approval, or notice of MIL Nos. 6 and 17 before filing; and records of any disavowal or correction of MIL Nos. 6 and 17 after the February 18, 2025 hearing.
10. **Institutional practice:** All records of claim-closure timelines, denial rates, or comparable performance metrics for claims adjusters.

LEGAL AUTHORITY

The Court has inherent authority to issue preservation orders to protect the integrity of pending litigation. (See *Dodge, Warren & Peters Ins. Services, Inc. v. Riley* (2003) 105 Cal.App.4th 1414, 1420.) A preservation order is appropriate where there is a reasonable basis to believe that relevant evidence may be lost or destroyed. (*Cedars-Sinai Med. Ctr. v. Superior Court* (1998) 18 Cal.4th 1, 12.)

California courts possess inherent power to strictly control their own process and prevent the destruction of evidence. (Code Civ. Proc., § 128; *Dodge, Warren & Peters*, supra.) Insurers have duties under Insurance Code section 790.03(h)(3) and title 10, California Code of Regulations sections 2695.3 and 2695.7(d) regarding claims handling and documentation. Spoliation of evidence after a party is on notice of its relevance gives rise to adverse inferences (Evid. Code, § 413) and sanctions (Code Civ. Proc., § 2023.030). A preservation order ensures that any subsequent

destruction triggers these remedies.

CONCLUSION

Plaintiff respectfully requests the Court issue the attached Proposed Order directing Defendant CSAA to preserve the records identified above for the duration of this litigation.

PART II: DECLARATION OF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff in this action, proceeding in pro per. I have personal knowledge of the facts stated herein, and if called as a witness, I could and would testify competently to them.
2. On or about February 27, 2026, I completed service of the Complaint in this action on Defendant CSAA Insurance Exchange. The Complaint alleges fraud arising from CSAA's February 25, 2021 denial letter, which falsely represented that CSAA's investigation was "concluded."
3. The evidence necessary to prove the falsity of this representation resides in CSAA's electronic claim systems: specifically, the claim file, adjuster notes, diary entries, audit trails, metadata, and investigation documentation showing what activity, if any, occurred prior to the denial.
4. I am informed and believe that such systems utilize automated retention policies that overwrite access logs and metadata on a rolling basis. Without a preservation order, the primary objective evidence of the timeline of events is at immediate risk of spoliation.
5. The underlying claim was closed by the April 25, 2025 judgment in CGC-21-594102. Insurers routinely purge claim files after a period following claim closure.
6. I believe that without a preservation order, there is a substantial risk that some or all of these records will be destroyed, altered, or purged before they can be obtained through formal discovery.
7. I have provided notice of this ex parte application to Defendant CSAA by email and telephone.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Dated: March 9, 2026

1 FRANCISCUS DYLAN ROSARIO

PART III: [PROPOSED] ORDER GRANTING EX PARTE APPLICATION

The Ex Parte Application of Plaintiff Franciscus Dylan Rosario for a Document Preservation Order having come before this Court, and good cause appearing therefor,
IT IS HEREBY ORDERED that:

1. Defendant CSAA Insurance Exchange shall immediately preserve, maintain, and refrain from destroying, altering, concealing, transferring, or disposing of the following records:
   (a) The complete claim file for the Abdelhalim claim arising from the February 4, 2021 incident, including all adjuster notes, diary entries, internal correspondence, audit trails, metadata, and investigation documentation from February 4, 2021 through the present.
   (b) All records documenting the denial-letter process, including drafts, approval chains, and communications regarding the decision to deny the claim.
   (c) All litigation management records and correspondence with defense counsel regarding CGC-21-594102.
   (d) All claims manual, procedures, and training materials defining "complete" or "concluded" investigation; denial-letter templates; records of pre-denial contact with SFPD or DEM; records of when CSAA or its counsel first obtained the 911/BWC/CAD; records of post-denial evaluation and reserve changes; records of CSAA's awareness and review of MIL Nos. 6 and 17; and records of claim-closure timelines and denial rates.
2. This Order shall remain in effect for the duration of this litigation unless modified by further order of the Court.
3. Violation of this Order may result in sanctions, including adverse inferences (Evid. Code, § 413), monetary sanctions (Code Civ. Proc., § 2023.030), and such other relief as the Court deems appropriate.
4. Plaintiff shall serve a copy of this Order on Defendant within 48 hours of its issuance.

Date: March 9, 2026

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Judge, Superior Court of the State of California
County of San Francisco